

		and to instruct his Taiwan counsel to cooperate with Ms. Chen to transfer Mrs. Feng’s financial assets. Paul also asks that the \$139,375 held in trust by the undersigned for Paul Feng be immediately released to him. However, the agreement states that the balance is not to be released to Paul until Ron receives Mrs. Feng’s funds. The Court <i>declines to order immediate release of the funds, which is contrary to the parties’ agreement.</i> Paragraph 24 of the settlement agreement provides, in relevant part: “Should court intervention be required to resolve any disputes with regard to this Agreement, the prevailing party under <u>Code of Civil Procedure</u> § 664.6 shall be entitled to his reasonable attorney fees and costs.” Paul seeks attorney fees against Ron pursuant to this section. However, because both parties have engaged in conduct that has resulted in delay, the request for attorney fees is DENIED. Moving party to give notice.
4.	30-2025-01500072 Salmeron v. Audicus	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Answers to Form Interrogatories 3. Motion to Compel Answers to Form Interrogatories 4. Motion to Compel Answers to Form Interrogatories 5. Motion to Compel Answers to Form Interrogatories 6. Motion to Compel Answers to Form Interrogatories 7. Motion to Compel Answers to Form Interrogatories 8. Motion to Compel Answers to Form Interrogatories 9. Motion to Compel Arbitration 10. Motion to Deem Facts Admitted 11. Motion to Deem Facts Admitted 12. Order to Show Cause re: Appointment of Referee Defendants Audicus, Inc. and Andre Sequin (“Defendants”) move to compel arbitration. Plaintiff Maria Medrano Salmeron (“Plaintiff”) opposes the motion. In compelling arbitration, “the moving party bears the burden of producing ‘prima facie evidence of a written agreement to arbitrate the controversy.’” (<i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 165; Cal. Rules of Court, rule 3.1330.) “The moving party can meet its initial burden by attaching to the motion or petition a copy of the arbitration agreement purporting to bear the opposing party’s signature.” (<i>Ibid.</i> [internal citations omitted].) Importantly, “[f]or this step, ‘it is not necessary to follow the normal procedures of document authentication.’” (<i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 165 [citing <i>Condee v. Longwood Management Corp.</i> (2001) 88 Cal.App.4th 215, 218].) In fact, the moving party can meet its burden of establishing “evidence of a written agreement to arbitrate the controversy” by (1) “attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature” or (2) “setting forth the agreement’s provisions in the motion.” (<i>Ibid.</i>) “If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to

meet its burden of persuasion.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.)

“If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) “The opposing party can do this in several ways.” (*Ibid.*) For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement.” (*Ibid.* [citing *Bannister, supra*, 64 Cal.App.5th at p. 546, 279 Cal.Rptr.3d 112 [never saw or signed agreement]; *Fabian v. Renovate America, Inc.* (2019) 42 Cal.App.5th 1062, 1065, 255 Cal.Rptr.3d 695 (*Fabian*) [never given or signed contract]; *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1054, 201 Cal.Rptr.3d 318 (*Espejo*) [did not recall seeing or signing document]; *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846, 181 Cal.Rptr.3d 781 (*Ruiz*) [did not recall signing agreement].)

“If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) “The burden of proving the agreement by a preponderance of the evidence remains with the moving party.” (*Id.*, 165–166.)

Although [p]ublic policy favors contractual arbitration as a means of resolving disputes ... that policy does not extend to those who are not parties to an arbitration agreement, and a party cannot be compelled to arbitrate a dispute that he has not agreed to resolve by arbitration.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 166 [internal quotations omitted].)

Here, the Court finds that Defendant has sufficiently authenticated Plaintiff’s signature on the Worksite Employee Acknowledgment and Arbitration Clause contained therein pursuant to the holdings in *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 843–844, *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1062, and the other related case law cited by the parties.

For example, Christian Sjulsen, who is the “Head of Consumer” and testified that he is “familiar with Audicus’ operations, and Plaintiff’s employment with Audicus, including Audicus’ onboarding practices with Justworks.” (ROA 147, Declaration of Christian Sjulsen, ¶ 4.) Sjulsen also testified that in his position, he has “he access to personnel records, which are maintained in the ordinary course of business. I reviewed Plaintiff’s personnel file, as well as the Arbitration Agreement signed by Plaintiff on or about July 11, 2023 with Justworks.” (ROA 147, Declaration of Christian Sjulsen, ¶ 7.)

Then, Kyle Johnson testified about the process pursuant to which Plaintiff would sign the subject agreement. (ROA 148, Declaration of Kyle Johnson, ¶¶ 2- 6.) Johnson stated that each employee creates an individual employee account with JustWorks. JustWorks is a third party hired to conduct HR procedures, such as onboarding and tax paperwork. Once an employee creates an individual employee account with JustWorks, the employee is prompted to sign the Employee Worksite Acknowledgement Agreement. When the employee signs documents on JustWorks, their name, the date, and the IP address at which the signature was made is recorded on JustWorks and is stored with Just Works.

		JustWorks also contains the employee’s wage statements and personnel file documents, including tax documents (such as a W-2), benefit plan documents, and others. Importantly, all of the documents that Plaintiff signed or that pertain to Plaintiff are stored on her JustWorks account and are accessible to her at her discretion. Given the above, the Court finds that the electronic signature has been sufficiently authenticated such that the electronic signature was an act of Plaintiff. Next, the Court finds that the Worksite Employee Acknowledgment and Arbitration Clause contained therein supersedes the Offer of Employment and therefore, contrary to Plaintiff’s argument, the Offer of Employment does not govern. The Arbitration Clause contained in the Worksite Employee Acknowledgment expressly states “This is the entire agreement between you, on the one hand, and Worksite Employer and/or Justworks, on the other hand, regarding dispute resolution, and this arbitration agreement supersedes any and all prior agreements regarding these issues. Any agreement contrary to the foregoing must be entered into, in writing, signed by you, the authorized representative of Worksite Employer and the CEO of Justworks.” This document was signed by Plaintiff on July 11, 2023 at 12:59 p.m. Thus, the Acknowledgment with the Arbitration Clause was signed after Plaintiff signed the offer of employment letter and supersedes any agreement to resolve disputes in the Court as Plaintiff argues. There is no ambiguity in the term that expressly state that the Worksite Employee Acknowledgment supersedes any prior agreements. The Court is not persuaded by Plaintiff’s argument that the Acknowledgment is illusory. The Court finds that the Arbitration Clause is binding and enforceable. The Court finds that the Arbitration Clause meets the requirements set forth in <i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83, 102, which holds that an <u>employment</u> arbitration agreement is lawful and therefore enforceable if it “(1) provides for neutral arbitrators, (2) provides for more than minimal discovery, (3) requires a written award, (4) provides for all of the types of relief that would otherwise be available in court, and (5) does not require employees to pay either unreasonable costs or any arbitrators’ fees or expenses as a condition of access to the arbitration forum.” (<i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83, 102.) Given the above, the Motion to Compel Arbitration is GRANTED and the action is STAYED. Accordingly, the discovery motions and related OSC re discovery referee are taken OFF CALENDAR. The Court sets an ADR Review hearing for October 1, 2026 at 10:30 a.m. in C34. Moving party to give notice.
5.	30-2024-0137003 Dib vs. Daher	1. Motion for Summary Judgment and/or Adjudication Plaintiffs Joseph Dib and R&R Life is Amazing (“Plaintiffs”) move for summary judgment against Defendant K&A Holdings, LLC as to the first cause of action for fraudulent transfers in violation of Civil Code section 3439.04, second cause of action for conspiracy to fraudulently convey property, third cause of action aiding and abetting fraudulent conveyance of property,